

JUDGMENT SHEET

LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

W.P No. 3918 of 2021

Abdul Jabbar Vs. Mst. Saba Kausar, etc.

JUDGMENT

DATE OF HEARING:	26.01.2026
PETITIONER BY:	Mr. Muhammad Mansoor-ul-Haq Raja, Advocate.
RESPONDENTS No.1 and 2 BY:	Mr. Abid Hussain Chohan, Advocate.

TARIQ MAHMOOD BAJWA, J:- By means of the instant Constitutional petition, the petitioner has made the following prayer:

“It is humbly prayed that instant writ petition may kindly be accepted, the impugned judgments and decrees dated 04-10-2021 and passed 28-10-2021 by respondents no. 3 and 4 be set aside to dismiss the suit for recovery of gold ornaments, recovery of past maintenance of respondent no. 1 and delivery expenses, and to set aside the decree for recovery of dowry article regarding the remaining article, and further to alter the decree for maintenance of respondent no. 2 while decreasing the maintenance from 10,000/- to Rs. 3500/-, from February 2020 according to financial position of the petitioner and to set aside the decree for recovery of dowry article regarding the remaining articles. Any other relief which this Honourable court considers appropriate may also be granted.”

2. Inessential facts apart, the respondent No.1/plaintiff No.1 filed a suit seeking dissolution of marriage by way of *khula*, recovery of dowry articles including gold ornaments worth Rs.1,387,998/- past and future maintenance of herself as well as plaintiff No.2, delivery expenses, and *iddat* maintenance, contending that the marriage was solemnized on 10.08.2018, alleged physical abuse, monetary demands, and forcible expulsion from the matrimonial home on 01.04.2019, during her pregnancy, resulting in the birth of Appellant No. 2 at her parental home. It was further averred that the respondent,

a school teacher owning agricultural land and earning over Rs. 100,000 per month, refused to meet the appellants' lawful claims, compelling the filing of the suit. The petitioner-defendant contested the suit on legal and factual grounds, denying the facts of the plaint, challenging its maintainability, and seeking dismissal, after trial the learned Family Judge partly decreed the suit in the following terms:-

- *Plaintiff is held entitled to recovery gold ornaments ie one pair of bracelet weighing 19 grams and 500 milligrams, two gold rings weighing 7 grams and 630 milligrams and one necklace weighing 3 tola or their present market value in alternate. The rest of the claim for recovery of gold ornaments of the plaintiff is dismissed.*
- *Plaintiff is held entitled to recover Rs.5000/- from April 2019 till she remained legally wedded wife of the defendant.*
- *Plaintiff No.2 is held entitled to recover Rs.7000/- per month? along with 10% annual increase from July 2019 till her marriage or defendant obtains her lawful custody.*
- *Plaintiff is held entitled to recover Rs.40000/- in total as maintenance for the period of Iddat.*

3. Being aggrieved, both the parties preferred their respective appeals, learned Additional District Judge, Sohawa, District Jhelum, after hearing both sides, partially accepted the appeal filed by respondents No.1 and 2 and dismissed the appeal of the petitioner, vide judgment and decree dated 04.10.2021. Feeling still dissatisfied, the petitioner has invoked the constitutional jurisdiction of this Court through the instant writ petition.

4. Mr. Muhammad Mansoor-ul-Haq, Advocate, learned counsel for the petitioner, has submitted that he pressed this petition only to the extent of decreed gold ornaments as dowry articles; that both the courts below had relied upon alleged affidavit of the petitioner as Ex.P4, firstly the learned Judge Family Court decreed the gold ornaments and even recorded findings that the respondent No.1/wife failed to establish the snatching of gold ornaments. While advancing his contentions, adds that respondent No.1 had instituted the suit with multiple prayers on 06.02.2020 and in the plaint, it was not pleaded that the petitioner/defendant had executed any affidavit relating to the return of gold ornaments or maintenance. With vehemence adds that

respondent No.1 as well her father being P.W.1 and P.W.2, had not deposed in their examination-in-chief or cross examination that the said affidavit was executed by the husband/petitioner; that respondent No.1 closed the evidence and thereafter on her application one Tariq Mehmood Mughal, appeared as P.W.3 and as a surprise tender agreement/affidavit of the petitioner Ex.P.4. After referring the contents of the plaint, the evidence of the plaintiff, learned counsel contends that said stamp paper/affidavit was neither executed nor proved and both the courts wrongly relied upon that document and decreed the gold ornaments. In order to augment his arguments, learned counsel for the petitioner has placed reliance upon case laws reported as:

- I. “Khizar Hayat Vs. Judge Family Court, Sargodha and another” (2018 MLD 1480),
- II. “Mst. Shazia Begum Vs. Additional District Judge” (PLD 2014 SC 335),
- III. “Muhammad Javed Sarwar through Special Attorney Vs. Samra Yasmeen” (2017 YLR 1467),
- IV. “Nargis Bibi (widow) through her legal heirs and others Vs. Muhammad Amin and others” (2024 YLR 2342),
- V. “Muhammad Afzal Vs. Additional District Judge, Lahore” (PLD 2023 Lahore 669)
- VI. “Hameed Ullah Khan Vs. Additional District Judge Mianwali, and 03 others” (2022 YLR 2157).

5. Ch. Abid Hussain Chohan, Advocate, learned counsel for respondents No.1 and 2, while repelling the contentions raised by the petitioner’s counsel and defending the judgments and decrees passed by both courts below contends that both the courts below decreed the gold ornaments in favour of respondent No.1 in the light of the evidence produced by her.

6. Harkened, record perused.

7. The controversy between the parties pertains to the decree of gold ornaments. It is a well-recognized social tradition that a bride enters her matrimonial home adorned with gold ornaments, retains

their possession, and wears them on joyous family occasions. Even in adverse or critical circumstances, such ornaments ordinarily remain in her custody. Therefore, cogent and convincing evidence is required to rebut this settled presumption. The golden ornaments are also part of wearing apparel of the lady and the use of husband is to sale out the same, to invest in his business or to satisfy any other need, the other eventuality, these were snatched by the petitioner (husband) or his other family members, it was not the case of respondent No.1 in the plaint that on such and such date or time, the golden ornaments were taken by the husband or by his family members, the other situation is, that those were snatched, the same was also not pleaded by the respondent No.1 in her plaint. Even the factum of snatching of the gold ornaments was considered in case law reported as “Mst. Shazia Begum Vs. Additional District Judge, Islamabad and others” (PLD 2014 SC 335), no doubt principles of pleadings of the civil practice are not applicable but this special law itself requires that the plaint shall contain all the facts relating to the dispute. The relevant provision Section 7(2) of West Pakistan Family Courts Act, 1964 is reproduced as under:

“S.7. Institution of suits.

(1).....

(2) *The plaint shall contain all facts relating to the dispute and shall contain a Schedule giving the number of witnesses intended to be produced in support of the plaint, the names and addresses of the witnesses and brief summary of the facts to which they would depose.”*

8. On the yardstick of the aforesaid two points, whether it was taken by the husband/petitioner during the healthy/happy environment to satisfy any need or it was snatched when there were hostile relations, on both vital aspects, the plaint of the respondent No.1 is completely silent, so much so, there is nothing in the evidence of the respondent No.1 qua the said pivotal fact. The respondent No.1 relied solely on a self-prepared list of gold items, which was prepared after the institution of the suit as even titled of the case is mentioned over it, without producing any receipts of purchase, valuation certificates, or documentation from the goldsmith, how she could

remember the details of gold ornaments and their exact weight in tolas without any receipts, cross examination is the most important engine ever invented to bring on record the truth, prima facie, on cross examination the plaintiff/respondent was unable to tell the items, its number or its value just on the basis of her memory after almost two years. It is a well established question of law that if the evidence is misread or non-read by the learned lower *fora* without attending the plaint as well as the evidence on the requirements as discussed ante, the Court is quite competent to reverse the concurrent findings. Guidance is derived from case laws reported as Javed Iqbal Vs. Additional District Judge, Faisalabad and another (2017 CLC Note 25) and Hameed Ullah Khan Vs. Additonal District Judge, Mianwali and others (2022 YLR 2157), in both the precedents, despite concurrent findings qua gold ornaments, the same was capsized. Due to its high monetary worth, any claim for recovery of gold ornaments must be substantiated through cogent, reliable, and confidence-inspiring evidence. Here a question may arise that the traditions/practice overcome the concurrent findings, not out of place to discuss here that Dowry and Bridal Gifts (Restriction) Act, 1976 was enacted but as a matter of fact, the said Act is a paper law and has seldom been acted upon rather it was observed by the Courts that the said law cannot be taken as rod to deprive the wife from her huge dowry articles, in short, the law came under the layers of the traditions/customs, on the same analogy, at the cost of reptation, gold ornaments are only the useable item of the wife, and in absence of the *supra* two eventualities and solid evidence, it cannot be decreed.

9. The Court is alive to the legal aspect that Family Courts operate outside the limitations typically imposed by the Code of Civil Procedure, 1908, and the more stringent standards set forth by the Qanun-e-Shahadat Order, 1984, however, a big question arises, how a Judge will judge the reality of the lis, presiding officer of the Family Court would definitely assess the material/evidence on the touchstone of proof, having it meaning as in Black's Law dictionary:

- “**Poof. 1.** The establishment or refutation of an alleged fact by evidence; the persuasive effect of evidence in the mind of a fact-finder
2. Evidence that determines the judgment of a court.
3. An attested document that constitute legal evidence.”

The meaning as per Webser’s New Word Dictionary is:-

“Proof. An establishment by evidence of the truth or falseness of an alleged fact; evidence upon which a court’s judicial ruling is based.”

Whereas according to Article 2(4) of the Qanun-e-Shahadat Order, 1984, “*A fact is said to be proved when, after considering the matters before it, the Court either believes it to exist, or considers its existence so probable that a prudent man ought, under the circumstances of the particular case, to act upon the supposition that it exists.*” Both the courts below placed heavy reliance upon affidavit Ex.P-4, allegedly executed by the petitioner/husband. However, the said document was not the affidavit submitted by the petitioner as his examination-in-chief; rather, it was tendered by the private respondent. Significantly, there was no averment in the plaint that such a document had been executed. The document bears the date 26.12.2019, whereas the suit was instituted much later on 28.06.2021. Moreover, the respondent/plaintiff did not utter a single word in her evidence regarding its execution between the parties. After the closure of her evidence, and upon her application, one Tariq Mehmood Mughal, a stamp vendor, appeared as PW-3 and produced the document as Ex.P-4. Notably, the document is styled as an affidavit, but in substance it appears to be an agreement. It seems to have been prepared in undue haste, as it does not even bear the signatures of the respondent, despite the fact that her name is mentioned therein. In addition to the parties’ names, the document reflects the names of two witnesses, including a headman; however, none of them was produced before the Court. When the petitioner appeared as DW, he categorically denied both the execution of the document and his signatures thereon, although he acknowledged knowing Aurangzeb (headman) and Habib, whose names are mentioned as witnesses. In view of these peculiar facts and

circumstances, Ex.P-4 falls far short of the standard of legal proof and could not have been safely relied upon. As regards the authority of the High Court to interfere with decisions rendered by subordinate courts in family matters, it is well settled that where a Family Court or First Appellate Court arrives at a conclusion based on a patent misinterpretation of statutory provisions, acts in ignorance or disregard of the law, or records findings founded upon legally untenable reasoning, such conclusions are amenable to correction through the constitutional remedy of certiorari under Article 199(1)(a)(ii) of the Constitution. Accordingly, the findings recorded by both the courts below with respect to the decreed gold ornaments are unsustainable and liable to be set aside.

9. In light of the foregoing discussion and findings, this writ petition is **partially allowed**. The judgments and decrees passed by the courts below are set aside **to the extent of the claim regarding gold ornaments**, as the said claim is unsupported by sufficient evidence and does not meet the legal standard required for the recovery of high-value assets such as gold ornaments. However, the remaining portions of the impugned judgments and decrees are maintained and upheld.

(Tariq Mahmood Bajwa)
Judge

M.S.Aleem

Approved for reporting

Judge